

Member Detail



Membership number
First name
Last name
Address 1
Address 2
City
Postcode

Mobile number
Other number
Email address

Membership

Membership type
Binding period
Start date for attendance
Home club

Person type
Agreement date 13/10/2025

Payment at joining

Joining fee
Pro rata
Total paid at joining \$0.00
Campaign Name

Health Commitment Statement



Your health is your responsibility. The management and staff at Virgin Active are dedicated to helping you take every opportunity to enjoy the facilities that we offer. With this in mind, we have carefully considered what we can reasonably expect of each other.

Our commitment to you:

1. We will respect your personal decisions, and allow you to make your own decisions about what exercise you can carry out. However, we ask you not to exercise beyond what you consider to be your own abilities.
2. We will make every reasonable effort to make sure that our equipment and facilities are in a safe condition for you to use and enjoy.
3. We will take all reasonable steps to make sure our staff are qualified to the fitness industry standards as set out by The Chartered Institute for the Management of Sport and Physical Activity.
4. If you tell us that you have a disability which puts you at a substantial disadvantage in accessing our equipment and facilities, we will consider what adjustments, if any, are reasonable for us to make.

Your commitment to us:

1. You should not exercise beyond your own abilities. If you know or are concerned that you have a medical condition which might interfere with you exercising safely, before you use our equipment and facilities you should get advice from a relevant medical professional and follow that advice.
2. You should make yourself aware of any rules and instructions, including warning notices, and follow them. Exercise carries its own risks. You should not carry out any activities which you have been told are not suitable for you.
3. You should let us know immediately if you feel ill when using our equipment or facilities. Our staff members are not qualified doctors, but there will be a person available who has had first-aid training.
4. If you have a disability, you must follow any reasonable instructions to allow you to exercise safely.

This statement is for guidance only. It is not a legally binding agreement between you and us and does not create any obligations which you or we must meet.

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PAYMENT AGREEMENT



DIRECT DEBIT REQUEST

Request and Authority to debit the account named below to pay Virgin Active Australia Pty Ltd

Membership number _____

Your surname or company name _____

Your given names or ABN / ARBN _____ ("you")

"You" request and authorise Virgin Active Australia Pty Ltd User Id 375243 to arrange, through its own financial institution, a debit to your nominated account of any amount Virgin Active Australia Pty Ltd deems payable by you.

This debit or charge will be made through the Bulk Electronic Clearing System (BECS) from your account held at the financial institution you have nominated below and will be subject to the terms and conditions of the Direct Debit Request Service Agreement.

BANK ACCOUNT DETAILS

Financial institution name _____

Financial institution address _____

Name(s) on account _____

BSB number (Must be 6 Digits) _____

Account number _____

Signature **Completed electronically at 13/10/2025 11:40:55** _____

(If signing for a company, sign and print full name and capacity for signing e.g. director)

Full name _____

Date 13/10/2025 _____

Position _____

Address _____

ACKNOWLEDGMENT

By signing and/or providing us with a valid instruction in respect to your Direct Debit Request or credit card, you have understood and agreed to the terms and conditions governing the debit arrangements between you and Virgin Active Australia Pty Ltd as set out in this Request and in your Direct Debit Request Service Agreement.

Virgin Active Australia reserves the right to collect arrears at other intervals.

DIRECT DEBIT REQUEST SERVICE AGREEMENT



The following is your Direct Debit Service Agreement with Virgin Active Australia Pty Ltd ABN 68126741133. User id – 375243. The agreement is designed to explain what your obligations are when undertaking a Direct Debit arrangement with us. It also details what our obligations are to you as your Direct Debit Provider. We recommend you keep this agreement in a safe place for future reference. It forms part of the terms and conditions of your Direct Debit Request (DDR) and should be read in conjunction with your DDR form.

Definitions

account means the account held at your financial institution from which we are authorised to arrange for funds to be debited.

agreement means this Direct Debit Request Service Agreement between you and us.

banking day means a day other than a Saturday or a Sunday or a public holiday listed throughout Australia.

debit day means the day that payment by you to us is due.

debit payment means a particular transaction where a debit is made.

direct debit request means the Direct Debit Request between us and you

us or we means Virgin Active Australia Pty Ltd, (the Debit User) you have authorised by signing a Direct Debit Request.

you means the customer who has signed or authorised by other means the Direct Debit Request.

your financial institution means the financial institution nominated by you on the Direct Debit Request at which the account is maintained.

Debiting your account

1.1. By signing a Direct Debit Request or by providing us with a valid instruction, you have authorised us to arrange for funds to be debited from your account. You should refer to the Direct Debit Request and this agreement for the terms of the arrangement between us and you.

1.2. We will only arrange for funds to be debited from your account as authorised in the Direct Debit Request.

1.3. If the debit day falls on a day that is not a banking day, we may direct your financial institution to debit your account on the following banking day. If you are unsure about which day your account has or will be debited you should ask your financial institution.

Amendments by us

2.1. We may vary any details of this agreement or a Direct Debit Request at any time by giving you at least fourteen (14) days written notice.

3.1. You may change, stop or defer a debit payment, or terminate this agreement by providing us with at least fourteen (14) days notification by writing to:

Virgin Active Level 3/400 Barangaroo Avenue, Barangaroo NSW 2000

or by telephoning us on 1300 975 688 during business hours; or arranging it through your own financial institution

Your obligations

3. WHEN WILL YOUR MEMBERSHIP START?

4.1. It is your responsibility to ensure that there are sufficient clear funds available in your account to allow a debit payment to be made in accordance with the Direct Debit Request.

4.2. If there are insufficient clear funds in your account to meet a debit payment:

a) you may be charged a fee and/or interest by your financial institution;

b) you may also incur fees or charges imposed or incurred by us; and

c) you must arrange for the debit payment to be made by another method or arrange for sufficient clear funds to be in your account by an agreed time so that we can process the debit payment

4.3. You should check your account statement to verify that the amounts debited from your account are correct.

4.4. If we are liable to pay goods and services tax ("GST") on a supply made in connection with this agreement, then you agree to pay us on demand an amount equal to the consideration payable for the supply multiplied by the prevailing GST rate

Dispute

5.1. If you believe that there has been an error in debiting your account, you should notify us directly on **1300 975 688** and confirm that notice in writing with us as soon as possible so that we can resolve your query more quickly. Alternatively you can take it up with your financial institution direct.

5.2. If we conclude as a result of our investigations that your account has been incorrectly debited we will respond to your query by arranging for your financial institution to adjust your account (including interest and charges) accordingly. We will also notify you in writing of the amount by which your account has been adjusted.

5.3. If we conclude as a result of our investigations that your account has not been incorrectly debited we will respond to your query by providing you with reasons and any evidence for this finding in writing.

Accounts

You should check:

a) with your financial institution whether direct debiting is available from your account as direct debiting is not available on all accounts offered by financial institutions;

b) your account details which you have provided to us are correct by checking them against a recent account statement; and

c) with your financial institution before completing the Direct Debit Request if you have any queries about how to complete the Direct Debit Request.

Confidentiality

7.1. We will keep any information (including your account details) in your Direct Debit Request confidential. We will make reasonable efforts to keep any such information that we have about you secure and to ensure that any of our employees or agents who have access to information about you do not make any unauthorised use, modification, reproduction or disclosure of that information.

7.2. We will only disclose information that we have about you:

a) to the extent specifically required by law; or

b) for the purposes of this agreement (including disclosing information in connection with any query or claim).

Notice

8.1. If you wish to notify us in writing about anything relating to this agreement, you should write to:

Virgin Active Level 3/400 Barangaroo Avenue, Barangaroo NSW 2000

5.4 Other membership fees and charges

8.2. We will notify you by sending a notice in the ordinary post to the address you have given us in the Direct Debit Request.

8.3. Any notice will be deemed to have been received on the third banking day after posting.

KEY TERMS AND CONDITION



During the sign-up process, we highlighted some specific terms and conditions and asked you to acknowledge that you had read and understood each of these individually

For your records, these conditions were:

1. Initial Commitment Period

You are committed to a minimum initial period of membership for the duration of your binding period as set out on the front page of your membership contract ("Initial Commitment Period"). On completion of your Initial Commitment Period, your membership will automatically renew for further two-week Commitment Periods ("Ongoing Commitment Periods") unless your membership is terminated in accordance with paragraph 8 or you provide us with notice that you wish for your membership to end on the expiry of the Initial Commitment Period which we must receive at least 3 days prior to the end of your Initial Commitment Period.

2. Price

You will pay the fortnightly subscription price set out on the front page of your membership contract for the duration of the Initial Commitment Period. After your Initial Commitment Period, we will give you at least 14 days' notice of any change and the date from which the change will apply by emailing you at the email address you have provided to us. After the Initial Commitment Period, if you do not wish to accept an increase in your Membership Dues you may terminate your membership in accordance with paragraph 8.1

3. Cooling Off Period

If you change your mind within 14 days of joining, we'll refund any payments. We may deduct any guest fees or personal training fees, if you've used our clubs or services.

4. Freeze

To freeze your membership, please let us know at least 3 days before the proposed freeze start date. Minimum 2 weeks to a maximum of 12 weeks over a 12-month period of membership.

5. Termination and cancellation

To cancel your membership, please let us know by calling us, emailing us or speaking to the front of house team at least 3 days before the next direct debit date (i.e. close of business on Sunday). If you terminate your membership within the Initial Commitment Period, an Early Termination Fee of up to \$300 will apply.

6. Group exercise bookings

To keep things fair, you can have 6 bookings at any given time. Cancellations within 3 hours of the class start time and no shows incur 1 strike. If you are on the waitlist of a class and get a space within 3 hours of the class starting, you will not receive a strike if you cancel or do not attend. If 3 strikes are incurred in any 14-day period, booking through the app will be suspended for 3 full days. Members can still attend a class without a booking if there is a spot available. Please see Legal Stuff for our full class bookings policy.

7. Personal Data

We will collect, use and retain your personal information in accordance with our privacy policy and collection notice found at virginactive.com.au

1. THE AGREEMENT BETWEEN YOU AND US

1.1 Your membership

These Terms, together with the Club Rules, Group Exercise Booking Rules, special terms and conditions and your Payment Agreement (if applicable to your membership) make up all of the terms of a Membership Agreement ("Agreement") between the member named above ("you"), and Virgin Active Australia Pty Limited (ABN 68 126 741 133 ("we" or "us")). It is important that you have read and understood all of the terms and conditions of the Agreement before agreeing to these Terms.

As explained in paragraph 4, your membership will last for the duration of the 'Binding Period' set out on the front page of your membership contract (known as the "Initial Commitment Period", unless terminated under paragraphs 4.1 or 8. After this Initial Commitment Period, your membership will automatically renew for further two-week Commitment Periods ("Ongoing Commitment Periods"), unless terminated in accordance with paragraph 8.

If you have any questions please ask us.

1.2 Corporate members

If you are a corporate member, you will have to produce proof of your corporate identity to us. If you fail to produce this corporate identity to us, we may ask you to reimburse us for any discounts you have received when joining. Extra or different terms ("Corporate Terms") might apply to you because of the corporate membership agreement between us and your employer. Corporate Terms form part of the Agreement between us, as well as the documents listed in paragraph 1.1 above. If there are any differences between any part of these Terms and the Corporate Terms, the relevant terms of the Corporate Terms will take priority. The company which is allowing you to benefit from corporate membership is responsible for making you aware of any Corporate Terms that apply.

2. YOUR TYPE OF MEMBERSHIP, YOUR HOME CLUB AND OTHER CLUBS

You are becoming a member of Virgin Active (a "Member") under the type of membership ("Membership Type") and at the club ("Home Club") stated in your Membership Application Form.

Your membership entitles you to:

- (a) maintain a membership account with us, and access the Digital Content available via your Virgin Active App, subject to clause 10;
- (b) book and attend group exercise classes or club visits with us in accordance with the visitation limits on your membership type using your Virgin Active App in accordance with our Group Exercise Booking Rules;
- (c) use the facilities available at your Home Club, in accordance with your Membership Type. Depending on your membership type and subject to our Reciprocal Rights Policy (available at virginactive.com.au or by asking the receptionist at your Home Club), you may also have rights to use the facilities of other Clubs in Australia or other countries in which we operate.

"Club" means any Virgin Active Club in operation by us or any other member of the Virgin Active group from time

Reciprocal rights are not available to some membership types.

We reserve the right to cancel or suspend your reciprocal rights in the event that you fail to comply with our Reciprocal Rights Policy.

Certain membership types have visitation limits. Under these membership types you may only use the facilities of a Club:

- (a) for one occasion only, for each Club Visit confirmed by us;
- (b) at the time and in the location where you have booked your Club Visit; and
- (c) if you have received a Club Visit confirmation, or have been granted access by our Reception staff.

For memberships with visitation limits, your Club Visit credit will be able to be used within 6 months from the date that the credit was created. Your front of house team will be able to confirm the number of credits you

have available and the relevant expiry dates. You can pay in advance for additional Club Visits if the visitation limit of your membership has been reached.

3. WHEN WILL YOUR MEMBERSHIP START?

Your membership will start on the Membership Start Date ("Membership Start Date") set out on the front page of your membership contract, provided that:

- (a) you have confirmed your agreement to your terms of membership;
- (b) you have confirmed your agreement to the Health Commitment Statement; and

- (c) we have received your joining fee (if applicable) and your pro rata payment or first month's membership fees (as applicable and as set out on the front page of your membership contract).

You will be able to book Club Visits and/or access the Digital Content from your Membership Start Date.

4. HOW LONG WILL YOUR MEMBERSHIP LAST?

4.1 Commitment Periods

Your Commitment Periods include an Initial Commitment Period and may also include Ongoing Commitment Periods. You are committed to a minimum initial period of membership for the duration of your binding period as set out on the front page of your membership contract ("Initial Commitment Period").

On completion of your Initial Commitment Period, your membership will automatically renew for further two-week Commitment Periods ("Ongoing Commitment Periods") unless your membership is terminated in accordance with paragraph 8 or you provide us with notice that you wish for your membership to end on the expiry of the Initial Commitment Period which we must receive at least 3 days prior to the end of your Initial Commitment Period. Each Ongoing Commitment Period will begin on the first day after your previous Ongoing Commitment Period ends.

4.2 Can you suspend or "freeze" your membership?

If you wish to suspend or "freeze" your membership you may notify us of your request by calling us, emailing us or speaking to the front of house team. You will also have to pay the non-refundable Freeze Fee set out in your Home Club price list current at the time you freeze your membership. You can freeze for a minimum of two weeks and a maximum of 12 weeks. If you freeze your membership during the Initial Commitment Period, your Initial Commitment Period and the Initial Commitment Period end date set out in your Membership Application Form will be extended by the Freeze Period. You can notify us at any time that you would like to freeze your membership but your Home Club must receive your notice at least 3 days prior to the date on which you wish to freeze. You will not be able to use any Club while your membership is frozen.

What happens if you change your mind?

You may notify us by calling us, emailing us or speaking to the front of house team that you wish to cancel your membership within 14 days starting on your Membership Start Date ("Cooling Off Period"). If you do so, we will refund your Total Upfront Payment and any Membership Dues which you have paid to us after you return any gifts or documentation which we have provided to you upon joining. If you have used your membership during the Cooling Off Period, we will refund those amounts set out above, less the Guest Fee for each visit, the fees for any personal training or other Club services you have received and a reasonable administration charge.

5. MEMBERSHIP DUES AND FEES

5.1 Membership Dues

As a Virgin Active Member you are personally responsible for payment to us of the Membership Dues and any other ongoing payments set out on the front page of your membership contract as they fall due. As a Member, your Membership Dues are payable for the whole of your Initial Commitment Period at the total cost set out on the front page of your membership contract. Your Membership Dues are due for the whole of each fortnightly billing period even if your membership

is terminated during that fortnightly billing period (unless you have terminated under paragraph 8.2(b)). If your first fortnightly period includes a partial fortnightly billing period, your Membership Dues for that period will be calculated on a proportional basis according to the number of days remaining in that fortnightly billing period.

Membership Dues vary depending on your type of membership and also vary from Club to Club. You must pay the Membership Dues applicable to your Home Club and your Membership Type at the relevant time. You may only pay your Membership Dues in advance by direct debit or periodic credit card authority under your Payment Agreement. No other form of payment will be accepted.

You will not be allowed to access to the Club if your Membership Dues remain outstanding. We will collect any outstanding amounts and any charges we incur from late payment through your Payment Agreement (if applicable). If you have a genuine dispute in relation to the collection of outstanding amounts or the charges we incur, please contact us at reception and for recurring membership types in accordance with the dispute procedure set out in the Payment Agreement.

5.2 Changes to Membership Dues

Your Membership Dues are fixed for the Initial Commitment Period unless you change your Home Club during the Initial Commitment Period upon which the Membership Dues applicable at your new Home Club at the date of your Home Club transfer will apply for the remainder of your Initial Commitment Period. You will also be required to pay the relevant Transfer Fee set out in your Home Club price list. Upon the expiry of the Initial Commitment Period your Membership Dues will be updated to the Membership Dues then applicable at your Home Club at that time.

This may result in an increase to your Membership Dues after the Initial Commitment Period. We will give you at least 14 days' notice of any change and the date from which the change will apply by emailing you at the email address you have provided to us. After the Initial Commitment Period, if you do not wish to accept an increase in your Membership Dues you may terminate your membership in accordance with paragraph 8.1.

If you do not terminate your membership, you will be required to pay any revised Membership Dues from the date from which the change becomes effective and your direct debit payments or credit card payments will be amended accordingly. All Membership Dues include goods and services tax (GST). We reserve the right to change your Membership Dues in line with any government GST rate changes, even if you are in your Initial Commitment Period.

5.3 Changes to Club Visit fees

We review our Club Visit fees periodically and may change them from time to time. Club Visit fees can be obtained from Club Reception at the time of booking and will vary from Club to Club and the activity that the booking is for.

All Club Visit fees include goods and services tax (GST).

5.4 Other membership fees and charges

Any fees or charges that may be payable for additional services and facilities, such as Freeze Fees, Guest Fees, Towel Fees, Transfer Fees and ToddLZ Fees, will be set out in the relevant Home Club price list (as may be amended by us from time to time) available at the reception of your Home Club.

Such fees may be added to your direct debit payment.

5.5 Cancellations and credits

If you make a Club Visit booking error, wish to cancel a Club Visit Booking, or fail to attend a Club Visit booking, please see our Group Exercise Booking Rules for applicable cut off times, credits and cancellation rules.

6. CAN YOU TRANSFER YOUR MEMBERSHIP TO ANOTHER PERSON?

No, you may not transfer your membership to another person. Your membership is personal to you.

7. MEMBERSHIP TYPE

Membership types vary from club to club.

7.1 Can you change your Membership Type or Home Club?

Yes, you may change your membership to another Membership Type as long as you qualify for the new Membership Type and you serve any remaining period of your Initial Commitment Period under that new Membership Type. You can also change your Home Club to another Australian Club in accordance with our Reciprocal Rights Policy. You must make the request to us by calling us, emailing us or speaking to the front of house team and pay the relevant Transfer Fee (if any) and Membership Dues applicable to the new Membership Type and/or Home Club as current at the time of your request. Certain Membership Types may not be available at every Club. Your Home Club must receive notice of any change to your Membership Type or Home Club at least 3 days prior to the date from which you want the change to be effective. Student membership rates are only available to full time students. If your student status changes you must notify us immediately and we reserve the right to update your Membership Dues, even if you are in your Initial Commitment Period.

7.2 Access

Certain membership types may have restricted access times, refer to the price list at your Home Club to see which of these apply. For Essential Members, Club Visit credits can only be redeemed against certain class or activity types. Your Virgin Active App will show the classes and activities that are available to book for your credit type. No refunds will be provided if you book a class or activity that is less expensive than your original Club Visit.

7.3 Facilities

We may need to adjust the availability of certain facilities at your Home Club on a temporary basis including for the purposes of cleaning, improvement work, repairs, upgrades, maintenance, special functions and holidays. If your Home Club is not available for more than seven days in a row, you can ask us for a credit against your Membership Dues for the period that your Home Club is not available provided you do not use any other Club during that period.

8. HOW CAN YOUR MEMBERSHIP BE TERMINATED?

8.1 Termination by you after the Initial Commitment Period

After the Initial Commitment Period you may give us notice to terminate your membership by calling us, emailing us or speaking to the front of house team. We must receive this notification at least 3 days (i.e. by close of business Sunday) prior to the date of the fortnightly billing period that you wish to stop the renewal of your membership for fortnightly Ongoing Commitment Periods.

8.2 Reasons for ending your membership early

(a) If you wish to terminate your membership prior to the completion of your Initial Commitment Period you may do so by giving us notice in accordance with clause 8.1, however a fee of the lesser of the early termination fee set out in your Membership Application Form or the amount outstanding by you under this Agreement will be payable ("Early Termination Fee"). The Early Termination Fee must be paid by you in order for your termination to be processed. Your termination will take effect from the first fortnightly direct debit date after we receive cancellation request and Early Termination Fee.

(b) You may terminate your membership immediately by giving us notice in accordance with clause 8.1 within 30 days of any of the following occurring:

i. We increase your Membership Dues other than in accordance with paragraph 5.3.

ii. We change the physical location of your Home Club.

iii. We make changes to these Terms, the Digital Rules, the Digital Content or the Club Rules under paragraph 10 that significantly reduces the benefits of your membership.

iv. We breach any terms of this Agreement and fail to rectify that breach within 14 days of you giving us notice to do so.

(c) You may also terminate your membership by completing a by giving us notice in accordance with clause 8.1 within two months of any of the following occurring:

i. You are unable to use a Club because of a genuine and serious illness or injury for a period of at least two calendar months. You must provide reasonable professional evidence of your illness or injury such as a doctor's certificate or a letter from a hospital which must outline

specifically how your condition prevents you from using a Club for two calendar months or more. Your membership will terminate at end of the current fortnightly billing date provided that we receive your notice at least 3 days (i.e. by close of business Sunday) prior to the start of the next fortnightly billing date.

ii. You become bankrupt and provide us with reasonable evidence such as copies of Court documentation or orders. Your membership will terminate at the end of the current fortnightly billing date provided that we receive your notice at least 3 days (i.e. by close of business Sunday) prior to the start of the next fortnightly billing date.

8.3 Termination by us

We may terminate your membership immediately by emailing or writing to you at the contact addresses we have on our records:

(a) If you commit a serious or repeated breach of these Terms, the Digital Rules or the Club Rules.

(b) If you otherwise breach these Terms, the Digital Rules or the Club Rules and the breach, if capable of remedy, is not remedied within 14 days of us giving you notice to do so and informing you that your membership will be terminated if you fail to do so.

(c) If any part of your Membership Dues remains unpaid 28 days after falling due.

(d) If you provide us with details which you know to be false when applying for membership and these false details may have affected our reasonable decision to grant you membership.

If we terminate your membership for any of these reasons we may (without limiting any other right or remedy) recover any other reasonable costs and expenses we incur as a result of your breach and to collect the full amount of Membership Dues for the remainder of the then current fortnightly billing period, any arrears and any applicable Early Termination Fee.

(e) If we close your Home Club, we will provide you with the option to transfer to another Club at the prevailing Membership Dues applicable at that Club at the time of your transfer. We will not charge you a Transfer Fee. If you do not wish to accept the transfer to another Club, your membership will end on the date that your Home Club is closed.

8.4 Collection of fees

We will collect any Membership Dues and fees (including any applicable Early Termination Fee) that are outstanding when your membership is terminated. We may use a third party to assist in the collection of outstanding fees.

9. WHAT ARE THE RULES?

The Club Rules govern your use of a Club. The Digital Rules govern your use of our Digital Content. In becoming a member you agree to comply with: (i) the Club Rules which are binding rules that apply to all members, guests and visitors when visiting a Club; and (ii) the Digital Rules which are binding rules that apply to all members when using the Digital Content. You are also responsible for the conduct of your guests and visitors while they are using the Club. Up-to-date Club Rules and Digital Rules will be published at virginactive.com.au and displayed in each Club and on our website.

10. DIGITAL CONTENT

10.1 Intellectual Property Ownership

"Digital Content" means the digital, video, pre-recorded, live-stream and other audio-visual exercise presentations and resources we make available to you via our website or via your Virgin Active App.

All intellectual property rights within the Digital Content (including all text, software, graphics, sounds, music, videos, images, instructional content and any trademarks or logos) remain our property or are licensed to us.

By using the Digital Content and maintaining a membership account with us, you agree:

(a) you do not acquire any intellectual property rights in the Digital Content, other than a limited non-exclusive, non-transferable, non-sublicensable licence to personally use the Digital Content for your non-commercial personal use in accordance with your membership agreement;

(b) not to copy, reproduce, alter, remove, broadcast, distribute, publish, damage or otherwise interfere with the Digital Content; and

(c) to use the Digital content for your own personal use and not for any commercial purpose or any purpose prohibited by law.

Changes to Digital Content

We may remove, vary, add to or change the content of the Digital Content from time to time.

10.2 Service Disruption

The Digital Content is provided electronically and may be temporarily suspended without notice for security upgrades, maintenance, repair, systems failures, enhancements, modifications or failure of third party services (such as the internet). You release us from all claims arising from such service interruptions.

11. CHANGES TO THESE TERMS OR THE RULES

We reserve the right to make reasonable amendments to these Terms, Group Exercise Booking Rules or the Club Rules at any time. We will give you at least 14 days' notice by emailing you or writing to you to tell you that changes are being made and that you may see the amended Terms, the Digital Rules or Club Rules at our website or at the Club.

If any amendment to these Terms, the Digital Rules or the Club Rules significantly reduces the benefits of your membership you have the right to terminate your membership under paragraph 8.2(b).

12. HOW YOU SHOULD CONTACT US?

Any written notice or completed form provided to your Home Club must be sent by email, or given in person at reception; with exception of a termination by you (see paragraph 8). Full contact details are available at your Home Club's reception. Only notices delivered to us in one of these ways will be considered valid notice.

13. RISK AND YOUR HEALTH

Exercising and using the Digital Content and Club facilities may involve the risk of injury and you exercise and use the Digital Content and Club facilities at your own risk. Please monitor your physical condition at all times and exercise to a level that is appropriate given your knowledge of your health and any medical advice you have obtained. If any unusual symptoms occur immediately stop what you are doing and notify a staff member or seek medical assistance.

14. LIABILITY

14.1 Recreational Activities

In the course of exercising or engaging in any recreational activities while using the Digital Content or any Club facilities, if you are killed or injured, we will not be liable except to the extent caused by our gross negligence. In this paragraph:

- gross negligence, means as defined in paragraph 14.2 below; and
- recreational activities, means your participation in a sporting activity or a similar leisure time pursuit or your participation in any other activity that involves a significant degree of physical exertion or physical risk and is undertaken for the purposes of recreation, enjoyment or leisure.

Please refer to the warning notice in paragraph 14.2 below which we are required to provide to you if you are in Victoria under the Australian Consumer Law and Fair Trading Act 2012 in relation to this limitation on our liability.

14.2 Warning under the Australian Consumer Law and Fair Trading Act 2012

In this warning, references to "the supplier" mean us, and references to "you" mean you and your child (if you have agreed to these Terms on behalf of a child).

Under the Australian Consumer Law (Victoria), several statutory guarantees apply to the supply of certain goods and services. These guarantees mean that the supplier named on this form is required to ensure that the recreational services it supplies to you:

- are rendered with due care and skill; and
- are reasonably fit for any purpose which you, either expressly or by implication, make known to the supplier; and

• might reasonably be expected to achieve any result you have made known to the supplier.

Under section 22 of the Australian Consumer Law and Fair Trading Act 2012, the supplier is entitled to ask you to agree that these statutory guarantees do not apply to you. If you sign this form, you will be agreeing that your rights to sue the supplier under the Australian Consumer Law and Fair Trading Act 2012 if you are killed or injured because the services provided were not in accordance with these guarantees, are excluded, restricted or modified in the way set out in this form.

NOTE: The change to your rights, as set out in this form, does not apply if your death or injury is due to gross negligence on the supplier's part. Gross negligence, in relation to an act or omission, means doing the act or omitting to do an act with reckless disregard, with or without consciousness, for the consequences of the act or omission. See regulation 5 of the Australian Consumer Law and Fair Trading Regulations 2012 and section 22(3)(b) of the Australian Consumer Law and Fair Trading Act 2012.

14.3 Liability for supply of other services

Without limitation to paragraphs 14.1 and 14.2 and any other terms which are implied into this Agreement; or by statute in relation to the supply of services which cannot be excluded or limited, we will ensure that the services that we provide to you are provided with due care and skill, are fit for the purpose for which they are commonly bought as is reasonable to expect in the circumstances, will correspond in the nature and quality with the services demonstrated to you, and are free from any defect rendering them unfit for the purposes for which our services are commonly acquired.

To the extent permitted by law, and again without limiting paragraphs 14.1 and 14.2, unless we have breached these obligations we will not be liable for any death, injury, loss, liability or damage that you may incur as a result of the services provided by us to you.

15. OTHER BITS

You must keep us up to date with your contact details by calling us, emailing us or speaking to the front of house team at your Home Club. In the event that you do not inform us in one of those ways and your contact details change, notice given by us to the email or other address we have on our records for you will constitute valid notice to you under these Terms.

We may transfer our rights and obligations (or both) under this Agreement, or subcontract our obligations under it, to another organisation without giving you notice and you will continue as a member. If the other organisation fails to provide the same (or equivalent) facilities and services we provided, you may end your membership by emailing us, calling us or speaking to a member of the front of house team.

If we fail to enforce any of our rights at any time, for any period and for whatever reason, this will not take away those rights. Also if we fail to notice or act if you break any of the terms of this Agreement, this does not mean that your behaviour is acceptable. If a Court decides that a term of this Agreement is not valid or cannot be enforced, that term will not apply but this will not affect the rest of the Agreement.

This Agreement is subject to the laws of the State where your Home Club is located.

16. YOUR PERSONAL INFORMATION

We take the privacy of our members seriously and our Privacy Policy, which is available at virginactive.com.au, explains the ways in which we collect, use, store, protect and disclose your personal information. We collect personal information from you to provide you with our services, to administer your membership with us and for the other purposes described in our Privacy Policy. In most cases, we collect your personal information directly from you, including through your Membership Application Form and in the course of our other communications with you, which may occur through virginactive.com.au or when you call or contact our staff.

If you do not allow us to collect your personal information, we may not be able to provide you with our services, administer your membership with us or conduct some or all of the other activities described in our Privacy Policy.

With your consent, we may also collect personal information which relates to your physical health or condition, so that we can assess your general health, wellbeing and your readiness for physical exercise and for the other purposes set out in our Privacy Policy. If you do not provide this information, you will not be able to use our club. If we believe you have any health issue or if our Health Check Questionnaire is not fully completed, we may require you to obtain a medical certificate before we consider your application further.

In order to perform our services and for the purposes described in our Privacy Policy, we may disclose some of your personal information to our related bodies corporate and to other persons or entities as outlined in our Privacy Policy. Should you default on payments due to us we may disclose your personal information by notifying the default to a credit reference agency or other third party to obtain payment from you.

Other than as set out in our Privacy Policy, we will not share your personal information without your consent unless we are required to do so by law.

Our Privacy Policy explains how you may access and correct the personal information that we hold about you. It also sets out how you may contact us to complain about a breach of the Privacy Act, and how we will deal with such a complaint. If you have any questions or concerns about privacy or if you would like further information about our privacy practices, please contact the Virgin Active Privacy Officer using the following details:

Email: privacy@virginactive.com.au

Address: Virgin Active Australia 400 Barangaroo Avenue, Level 3, Barangaroo, New South Wales, 2000, AU

Confirmation

By signing below, you agree to be bound by this Agreement and you consent to the terms and conditions within it.

Do not sign below until you have read these Terms and the other documents listed in paragraph 1. If there is anything you do not understand, please ask us for an explanation before you sign. If you are under 18, a parent or guardian will need to sign below to give their permission for you to become a club member. Your parent or guardian will be responsible for your obligations under the Agreement and must sign below to say they accept these Terms and the Club Rules on your behalf, and to accept responsibility for your behaviour, actions and failure to act in line with this Agreement. In particular your parent or guardian will be responsible for paying all payments due under your membership. You agree that your parent or guardian will be the only person we will discuss your membership with unless they authorise another person (including you).

The Agreement between you and us will come into force when you sign these Terms (even if a Virgin Active Representative is not named or do not sign them).

Date **13/10/2025**

Member full name

Member signature